

been filed and it appears respondent is in agreement with the motion, in light of the stipulation submitted as Exhibit 2 to the declaration of counsel Alexis Ortega.

Court records are presumed to be open to the public unless confidentiality is required by law. (Cal. Rules of Court, rule 2.550, subd. (c).) This presumption, however, is not absolute. (*McNair v. Natl. Collegiate Athletic Assn.* (2015) 234 Cal.App.4th 25, 31.) The court may order court records sealed pursuant to California Rules of Court rules 2.550 and 2.551, if it makes the following findings: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest. (Cal. Rules of Court, rule 2.550, subd. (d).) Here, the court finds based on the moving papers and supporting documents that there exists an overriding interest that overcomes the right of public access to the records to be sealed. The court finds that a substantial probability exists that the overriding interest will be prejudiced if the records are not sealed. The court further finds that the proposed sealing of information is narrowly tailored, and that no less restrictive means to achieve the identified overriding interest exists. (Cal. Rules of Court, rule 2.550(d).)

The court orders sealed pages 31 through 184 of the notice of errata filed on November 24, 2025.

Copies of these documents will be sealed and maintained in the court's electronic file and shall be available only to the court and court personnel. Any person may make a motion to unseal the documents in accordance with California Rules of Court, rule 2.551(h).

11. S-CV-0054129 Faqurzadeh, Nabila v. CSAA Ins. Exchange

Motion to Compel Uninsured Motorist Arbitration

CSAA Insurance Exchange moves this court for an order compelling claimant Nabila Faqurzadeh to binding uninsured motorist arbitration with Retired Judge David Brown through JAMS Alternative Dispute Resolution. Claimant has not filed a response or yet appeared in this case.

Code of Civil Procedure section 1281.2 requires a trial court to grant a petition to compel arbitration "if [the court] determines that an agreement to arbitrate the controversy exists." (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59.) "A party seeking to compel arbitration has the burden of proving the existence of a valid agreement to arbitrate. Once that burden is satisfied, the party opposing arbitration must prove by a preponderance of the evidence any defense to the petition." (*Sparks v. Vista Del Mar Child & Family Services* (2012) 207 Cal.App.4th 1511, 1518, abrogated by *Harris v. TAP Worldwide, LLC* (2016) 148 Cal.App.4th 373 on other grounds.)

Although CSAA Insurance Exchange submits evidence of an agreement to arbitrate (see Anderson Decl. & Exh. A), proof of service of the motion on claimant Nabila Faqurzadeh appears deficient. Code Civil Procedure section 1290.4 (b) states as follows: “If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) service within this state shall be made in the manner provided by law for the service of summons in an action.” CSAA Insurance Exchange does not demonstrate service of the motion pursuant to Code of Civil Procedure section 1290.4(b).

Given this procedural deficiency, the motion is continued for proper service. CSAA Insurance Exchange shall file and serve notice of the continued hearing date on claimant.

The motion to compel uninsured motorist arbitration is continued to **July 7, 2026, at 8:30 a.m., in Department 42.**

12. S-CV-0054315 Somera, Jason Rusty v. Am. Honda Motor Co.

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys’ Fees

Plaintiff moves for an award of attorneys’ fees in the amount of \$14,242.50 (incurred fees of \$13,352.50 plus \$890 in anticipated fees) and costs of \$892.42. Plaintiff had initially moved for a larger amount of anticipated fees, but reduced the total sought by way of reply brief. Defendant opposes the motion.

A prevailing party in an action under the Song-Beverly Consumer Warranty Act (Civ. Code, §§ 1790 et seq.) shall recover costs and expenses, including attorneys’ fees actually incurred, “determined by the court to have been reasonably incurred” (Civ. Code, § 1794, subd. (d).) A prevailing party includes “the party with a net monetary recovery” or one who “realized its litigation objectives,” including in instances of settlement. (Code Civ. Proc., § 1032, subd. (a)(4); *Kim v. Euromotors West/The Auto Gallery* (2007) 149 Cal.App.4th 170, 179–80.) Here, plaintiff present evidence that the parties reached a settlement providing for defendant’s buyback of the subject vehicle and that defendant would pay plaintiff’s attorneys’ fees and costs as determined by the court. (Kim Decl., ¶ 31.) While plaintiff did not provide a copy of the settlement agreement, the settlement and its terms appear to be conceded by defendant. (See generally, opposition.) The court finds plaintiff is the prevailing party, having obtained the objective of this litigation, and is entitled to seek an award of attorneys’ fees pursuant to Civil Code section 1794(d).

The court must next address whether the request for \$14,242.50 in attorneys’ fees is reasonable. Determining the reasonable amount of attorneys’ fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*